

TENTATIVE RULINGS FOR August 20, 2026
Department R-14
BEFORE THE HONORABLE TONY RAPHAEL
(909) 285-3717

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department R-14 at SScott@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

PLEASE REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at <https://www.sb-court.org/divisions/civil/civil-tentative-rulings>.

You may appear in person or by remote appearance at the hearing. (See www.sb-court.org/general-information/remote-access) If you do not have Internet access you may obtain the tentative ruling by calling the department at 909-285-3717. If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 p.m. the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling and be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

RECARDO GOMEZ

V.

**LINC-PEPPERWOOD HOUSING INVESTORS,
L.P., ET AL.**

CIVRS2500226

FACTUAL AND/OR PROCEDURAL BACKGROUND

The Complaint and Allegations

On January 8, 2025, Plaintiff Ricardo Gomez filed his Complaint against Defendants Linc-Pepperwood Housing Investors, L.P. (Linc), Aperto Property Management, Inc. (Aperto), Power House Security LLC dba Blackwater Security (Power), Arlon Benito Guillen, Lorenzo Ortiz, and Raymond Joshua Bowman (collectively, Defendants) alleging five causes of action: 1) assault (against Guillen, Ortiz, Bowman), 2) battery (against Guillen, Ortiz, Bowman), 3) intentional infliction of emotional distress (IIED) (against Guillen, Ortiz, Bowman), 4) negligence (against all), 5) premises liability (against Linc, Aperto, Power).

On January 9, 2024, Plaintiff was in his vehicle in the parking lot of 9025 Foothill Blvd., Rancho Cucamonga (premises) when Guillen, Ortiz, and Bowman approached him, brandished a firearm, and physically assaulted Plaintiff in an attempt to steal his vehicle. Plaintiff was shot

and sustained injuries and damages. Plaintiff alleges that Linc, Aperto, and Power had a duty to control Guillen, Ortiz, and Bowman and protect him from physical and mental harm.

Linc and Aperto answered and cross-complained against Roes 1-50 for eight claims: 1) implied indemnity, 2) total equitable indemnity, 3) partial equitable indemnity, 4) express indemnity, 5) contribution, 6) apportionment of fault, 7) declaratory relief, 8) breach of contract. Linc and Aperto filed four amendments to cross-complaint identifying four Roe Defendants: Roe 1 is Power; Roe 2 is Guillen, Roe 3 is Ortiz; Roe 4 is Bowman.

Motion to Compel Compliance

Now before the court is Plaintiff's motion to compel compliance with a deposition subpoena for production of business records (subpoena) directed to non-party Rancho Cucamonga Police Department (PD or Department), who opposes, and Plaintiff replies. Linc and Aperto joined Plaintiff's motion. The notice states that the PD objected to the subpoena, stating "no records were submitted pursuant to Evidence Code section 1040." (Notice, 2:16-19.)

Plaintiff's motion was noticed originally for May 4, 2026; at that hearing, the court (Judge Janet Frangie) told the parties it received subpoenaed documents from the Department and intended to continue the matter to June 5, 2026, so that Plaintiff could pick up the documents and release copies to all parties. At the continued hearing, the parties told the court (Judge Gilbert Ochoa) that the PD is charging excess fees of \$4,422.00 to receive body-cam footage. (See Court's 6/5/26 Minute Order.) The court ordered an additional motion to be filed to fully brief this issue and continued the matter to July 8, 2026. (*Ibid.*)

After the 6/5/26 hearing, the Register of Actions (ROA) does not reflect that another motion was filed with the court. Instead, on 6/18/26, Linc and Aperto filed a joinder to Plaintiff's further motion to compel compliance. Then on 6/22/26, Department opposed

Plaintiff's motion and Plaintiff replied on 6/30/26. As such, the only motion before the court is Plaintiff's original compliance motion that was filed on 2/10/26 and noticed for 5/4/26.

DISCUSSION

Statement of Law Re Compelling Production per Deposition Subpoena

Plaintiff's motion is made per Code of Civil Procedure section 2025.480, subdivision (b), which merely sets forth the procedural requirements (the motion shall be made no later than 60 days after completion of the record of the deposition and shall be accompanied by a meet and confer declaration).

Subdivision (a) provides that if a deponent fails to answer any question or to produce any document, electronically stored information (ESI), or tangible thing under the deponent's control that is specified in the deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production. (Code Civ. Proc., § 2025.480, subd. (a).)

If the court determines that the answer or production sought is subject to discovery, it shall order that the answer be given or the production be made on the resumption of the deposition. (Code Civ. Proc., § 2025.480, subd. (i).)

Timeliness

The statute anchors the 60-day clock to the completion of the "record," not completion of the "transcript" of a deposition. The deposition record is completed when written objections are served in response to the deposition notice or subpoena. (*In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1288 (*Moore*); *Board of Registered Nursing v. Super. Ct.* (2021) 59 Cal.App.5th 1011, 1031-1032 (*Board of Registered Nursing*); *Unzipped Apparel, LLC v. Bader* (156 Cal.App.4th 123, 136 (*Unzipped*)).) The record of a deposition subpoena for business records is the documentary record memorializing the nonparty's response to the subpoena.

(*Board of Registered Nursing, supra*, 59 Cal.App.5th at p. 1032.) As such, the 60-day clock starts at the time when written objections or a response is served in response to the deposition notice or subpoena.

On December 15, 2025, Plaintiff served the subpoena upon the PD with production noticed for January 20, 2026. (Morgan Decl., ¶3, Exh. 1.) On January 12, 2026, before the specified production date, the Department sent a declaration stating no copies or records were submitted pursuant to California Evidence Code section 1040. (Morgan Decl., ¶4, Exh. 2.) Department's 1/12/26 response to the subpoena started the 60-day clock in Section 2025.480. With Plaintiff's motion served less than 60 days later, the motion is brought timely.

Meet and Confer Requirement

Case law characterizes the meet and confer declaration indicated in Section 2025.480, subdivision (b), as a *requirement* designed to encourage the parties to work out their differences informally which lessens the burden on the court and reduces unnecessary litigation expenses. (*Moore, supra*, 102 Cal.App.5th at p. 1293 (emphasis added).) The law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate; only after all cards have been laid on the table, and a party meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a sincere effort to resolve the matter. (*Id.*, at pp. 1293-1294.) It is clear that at least some attempt is required, and efforts may vary depending on whether the discovery context is large and complex or simple and narrowly focused. (*Id.*, at p. 1294.)

Plaintiff's moving papers do not contain any evidence that he met and conferred with the non-party Department before pursuing the instant motion. The Morgan declaration, which is the only evidence supplied by the Plaintiff, does not state that he or anyone on behalf of the moving

party met and conferred with the Department about their response to the deposition subpoena. (See generally Morgan Decl., ¶¶1-6.) In this regard, Plaintiff did not even attempt to meet and confer, reflecting a wholesale abandonment of the meet and confer requirement. In cases where there is a clear flaunting of statutory responsibilities, that is grounds to justify summary denial of discovery. (*Moore, supra*, 102 Cal.App.5th at p. 1296.)

The Court denies Plaintiff's motion for its complete failure to even attempt to meet and confer with non-party Department before filing the instant discovery motion.

Analysis of Merits

On its merits, denial is still warranted as explained next.

Plaintiff's subpoena identified the deposition officer as USA Express Legal & Investigative Services, Inc. (USA Express). (Morgan Decl., Exh. 1.) In examining the Department's response to the subpoena, it includes a declaration from the San Bernardino County Sheriff's Department custodian of records stating "no copies of records are submitted" and "no records were submitted pursuant to California Evidence Code section 1040." (Morgan Decl., Exh. 2.)

Evidence Code section 1040 contains three subdivisions (a) through (c). Subdivision (b) states that a public entity has a privilege to refuse to disclose official information if the privilege is claimed by a person authorized to do so and either of two conditions applies: 1) disclosure is forbidden by an act of Congress or a California statute or 2) disclosure is against the public interest because there is a necessity for preserving the confidentiality of the information that outweighs the disclosure necessity in the interests of justice. (Evid. Code, § 1040, subd. (b).)

Subdivision (c), provides that the Employment Development Department shall disclose to law enforcement agencies information in its possession relating to an arrest warrant issued for the person for commission of a felony. (Evid. Code, § 1040, subd. (c).)

Department's subpoena response does not specify which of the Section 1040 grounds supports its response of no records pursuant to Evidence Code section 1040. More importantly, Plaintiff did not even attempt to contact the Department to inquire further as to the reasons for asserting Section 1040. Instead, Plaintiff's memorandum *assumes* that Department's Section 1040 objection is based on subdivision (b) regarding the privilege to refuse to disclose official information for one of two reasons. (Plaintiff's Memo., 7:1-28, 8:1-12.) Plaintiff's memorandum then addresses requirements for asserting the subdivision (b) objection because disclosure is against the public interest because of a necessity to preserve confidential information. (Plaintiff's Memo., 7:19-28, 8:1-12.)

But this is an assumption that Department's objection is predicated on subdivision (b)(2) and not subdivision (b)(1) or (c). In the event the Department's Section 1040 objection is based on one of those provisions, Plaintiff's motion is entirely silent. Instead, Plaintiff skips to a purely speculative theory that the Department may be withholding records based on unstated privacy interests and spends two pages analyzing its own speculation. The more reasonable and logical approach would have been for Plaintiff to have met and conferred with the Department to inquire first about the specific basis for invoking Evidence Code section 1040, then discussing whether there was a legitimate basis for claiming such protection, and if so, whether there were any compromise solutions available.

Instead, Plaintiff disregarded the statutory meet and confer requirement which resulted in increased litigation expenses for all parties and the nonparty Department and burdened the court

with a discovery motion that disclosed incomplete, uncertain, and speculative arguments which prevents a meaningful assessment of the Department's asserted objection and whether the production sought is subject to discovery, which is a necessary determination under Code of Civil Procedure section 2025.480, subdivision (i).

It is also worth noting that non-party Department's opposition is unclear. First, Department's opposition states it has not refused to comply with the subpoena but instead identified responsive body-worn camera recordings and advised Plaintiff that production could proceed upon agreement from Plaintiff to incur reasonable costs associated with releasing the material. (Department's Oppo., 3:1-11.) Department did not submit any evidence with its opposition. Plaintiff's evidence does not disclose any response from the Department identifying body-worn camera recordings or production agreement based upon payment of costs.

Then, Department's opposition states Plaintiff's motion is premised on Evidence Code section 1563 limiting a nonparty witness to recovering reproduction and clerical costs. But Plaintiff's motion here, filed on 2/10/26, does not even mention section 1563. Department next argues that Plaintiff's reliance on *National Lawyers Guild v. City of Hayward* (2020) 9 Cal.5th 488 (*Guild*) is misplaced. But Plaintiff's motion does not even mention the *Guild* case.

Thus, it appears that nonparty Department has conflated the instant case with an entirely different lawsuit or matter such that its opposition sheds no meaningful light on the Plaintiff's motion to compel compliance.

Likewise, Linc and Aperto's joinder does not supply any helpful or useful information that would salvage Plaintiff's motion.

CONCLUSION

Based on the foregoing, the court rules as follows:

DENIES Plaintiff's motion for failure to meet and confer with non-party Department before filing the instant discovery motion and, on the merits, for the reasons stated above.

Counsel for the moving party is ordered to provide notice.

IT IS SO ORDERED.

TENTATIVE

FRANK EDWARD PETERS, II, et al.

V.

**SAN BERNARDINO COUNTY SHERIFF'S
DEPARTMENT, et al.**

CIVRS2509326

FACTUAL AND/OR PROCEDURAL BACKGROUND

On November 6, 2026, Plaintiffs Frank Edward Peters, II (Peters) and Shannon Takisha Prince-Peters (Prince-Peters) filed a Complaint against Defendants San Bernardino County (esa San Bernardino County Sheriff's Department and West Valley Detention Center); Department of Insurance; and California Department of Justice. Plaintiffs allege the following causes of action (1) false imprisonment; (2) negligence; (3) intentional infliction of emotional distress; (4) abuse of process; (5) violation of Bane Act; (6) civil conspiracy; and (7) negligent supervision and training.

Plaintiff's Complaint arises out of Plaintiffs being arrested and booked into the West Valley Detention Center on April 6, 2023. They allege that when bail was set, there was delay in reduction, and with Plaintiffs not being promptly released when bail was satisfied. (Compl. ¶¶ 5-14.)

Now before the Court is the County's motions to: (1) compel Plaintiff Prince-Peters to provide responses to Form Interrogatories (Set One) and Requests for Production (Set One); (2) compel Plaintiff Prince-Peters deposition; and (3) compel Plaintiff Peters to provide responses to Form Interrogatories (Set One) and Requests for Production (Set One).

While an opposition was filed and states it is Plaintiffs' opposition, Plaintiff Prince-Peters did not sign it and therefore, it should not be considered as to her. The opposition was paper-filed and therefore, both Plaintiffs' signatures are required.

Plaintiff Peters states he is incarcerated and asks for an extension and reset of briefing deadline. He requests the Court grant an extension of time, vacate any deadlines that expired while Peters was being transferred through the federal prison system, and establish a new briefing schedule that will give both Plaintiffs a meaningful opportunity to review the pleadings, confer with one another, and present their positions to the Court.

Peters concedes that Defendant initially served Plaintiffs at their residence, but states that Peters surrendered to federal custody on February 23, 2026, and had to undergo designation, transportation, intake processing, and placement within the Federal Bureau of Prisons before arriving at FCI La Tuna in Texas. During this period, Plaintiffs made diligent efforts to ensure documents reached Peters, but despite such efforts, substantial delays occurred in the delivery of legal mail, some was returned, and other correspondence was not received to allow Peters to participate. Peters claims to have received numerous documents originally served on his residential address on June 28, 2026, and to not have had a meaningful opportunity to review them. Peters requests additional time to respond to all pending motions, notices, stipulations, and filings, and additional time to receive documents. No evidence is submitted in support of the opposition.

Prince-Peters' Motion

On reply, the County argues that Plaintiff Prince-Peters did not file opposition and refuses to cooperate with discovery. Therefore, it argues that the Court should grant the motion.

In light of Prince-Peters not filing opposition, the County's motions directed to Prince-Peters are treated as unopposed. Therefore, the Court grants the County's motions and orders Prince-Peters to provide responses to the Form Interrogatories (Set One) and Requests for Production (Set One), without objections within 30 calendar days of the hearing. In addition, order Prince-Peters to appear for her deposition within 30 calendar days of the hearing.

Peters' Motion

On reply, the County argues that Peters is able to send and receive documents in prison and there is no reason he cannot meaningfully participate in discovery while incarcerated. It argues that Peters should not be entitled to special treatment for discovery due to being in prison. It also asserts that Peters never requested an extension of time to respond and waited until after the County filed the motion to raise his concerns. It again contends there is no indication that Peters will participate in discovery without Court intervention and the Court should grant the motion as to Peters.

DISCUSSION

Legal Standard re Written Discovery

If a party to whom interrogatories or requests for production were directed fails to serve timely responses, the propounding party may move for an order compelling responses. (Code Civ. Proc., §§ 2030.290, subd. (b); 2031.300, subd. (b).)¹ The failure to provide timely responses

¹ All further citations are to Code of Civil Procedure unless otherwise noted.

waives any objections. (§§ 2030.290, subd. (a); 2031.300, subd. (a).) There is no time limit for a motion to compel where no responses have been served. (§§ 2030.290; 2031.300.)

The court shall impose monetary sanctions against the losing party on the motion to compel unless it finds that party acted with substantial justification or other circumstances make the imposition of sanctions unjust. (§§ 2030.290, subd. (c); 2031.300, subd. (c).)

Analysis re Peters' Motion

The Court grants the motion as to Peters and order him to serve responses to the Form Interrogatories (Set One) and Request for Production (Set One), without objections, within 30 calendar days of the hearing.

Sanctions

With the Prince-Peters motions, Defendant seeks sanctions of \$717.50 in attorney fees and sanctions of \$250 in each of the motions. This amount is comprised of 2 hours for the motion and 1.5 hours for the reply and to appear at the hearing at \$205/hour. (Traver Decl. ¶ 8.) The basis for the requested \$250 sanction is not explained. Given that the Prince-Peters and Peters written discovery motions are largely the same, and a singular reply was filed, the Court awards the County sanctions of \$410, 2 hours total, for the motions filed against Prince-Peters. The Court denies all other requests for sanctions.

As for sanctions against Peters, no sanctions are requested; therefore, they are not at issue.

CONCLUSION

Based on the foregoing, the Court rules as follows:

GRANTS the County's unopposed motions as it relates to Plaintiff Prince-Peters. The Court **ORDERS** Plaintiff Prince-Peters to serve responses, without objections, to the County's Form Interrogatories (Set One) and Requests for Production (Set One) within 30 calendar days of

the hearing; and ORDERS Plaintiff Prince-Peters to appear for her deposition within 30 calendar days of the hearing. The Court **GRANTS** the County's request and order sanctions of \$410 against Prince-Peters.

GRANTS the County's motion to compel responses as it relates to Plaintiff Peters. The Court ORDERS Plaintiff Peters to serve responses, without objections to the County's Form Interrogatories (Set One) and Requests for Production (Set One), within 30 days of the hearing. Sanctions are not requested and, therefore, are not at issue.

Counsel for the moving party is ordered to provide notice.

IT IS SO ORDERED.